

25STLC08243 25STLC08243

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-10

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Case Number: 25STLC08243 Hearing Date: September 10, 2026 Dept: 25

HEARING DATE: Thurs., September 10, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: California

Injury PLC v. Rojo-Roman, et al. COMP.

FILED: 10-30-25

CASE NUMBER: 25STLC08243

NOTICE:

OK

PROCEEDINGS: MOTION FOR ORDER TO DISCHARGE

INTERPLEADER STAKEHOLDER FROM LIABILITY AND AWARDED COSTS AND FEES

MOVING PARTY: Plaintiff

California Injury PLC

RESP. PARTY: None

MOTION

FOR ORDER TO DEPOSIT INTERPLEADER FUNDS, FOR DISCHARGE

OF STAKEHOLDER, RESTRAINING ORDER AND ATTORNEY FEES AND COSTS

(Code Civ. Proc., § 386, 386.5)

TENTATIVE RULING:

The Court GRANTS California Injury PLC's motion. California Injury will be discharged from

liability effective upon its compliance with this order as follows:

California Injury is ordered to deposit \$1,224.00 with the Court within 30 days. That reflects the \$4,838.00 sum, less \$1,518.60 in attorney fees and \$2,095.40 in costs.

California Injury is to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of September 4, 2026 ☐

Late ☒ None

REPLY: None

filed as of September 4, 2026 ☐

Late ☒ None

ANALYSIS:

California Injury PLC filed

this complaint in interpleader against Maria Teresa Rojo-Roman, Jax

Orthopedics, Gutierrez Chiropractic, Diagnostic Imaging Network, Abraham

Ishaaya MD, Cloud Anesthesia, Manhattan Beach Surgery Center, Bay

Rehabilitation, and Weststar Physical Therapy regarding \$4,838.00 in net

settlement proceeds received by California Injury on behalf of Rojo-Roman. All defendants defaulted. California Injury now moves for an order to

deposit the funds with the clerk, be discharged from liability, and for

attorney fees and costs.

Interpleader is a procedure

whereby a person holding money or personal property to which conflicting claims

are being made by others, or may be made, can join the adverse claimants and

force them to litigate their claims among themselves. (Code Civ. Proc., § 386, subd. (b).) Once the stakeholder's right to interplead is

established and he or she deposits the money or personal property in court, he or she may be discharged from liability to any of the claimants, enabling the stakeholder to avoid multiplicity of actions and the risk of inconsistent results if each of the claimants were to sue him or her separately. (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 874; City of Morgan Hill v. Brown (1999) 71 Cal.App.4th 1114, 1122.)

Substantively,

California Injury contends it cannot determine the validity of conflicting demands that have been made on the settlement proceeds by the defendants and that it does not have an interest in the proceeds. All the defendants have defaulted. Thus, California Injury has shown it is entitled to deposit the funds and be discharged from liability on the settlement proceeds.

California

Injury asks for the attorney fees and costs it expended in interpleading this action and filing this motion. (Code

Civ. Proc., § 386.6; UAP-Columbus JV 326132 v. Nesbitt (1991)

234 Cal.App.3d 1028, 1036.) California

Injury seeks the entire \$4,838.00 in funds, reflecting \$2,095.40 in costs and \$2,742.60 in attorney fees. The Court finds the \$2,095.40 in costs proper and reasonable. The Court reduces the attorney fees by \$1,224, to \$1,518.60, because it will not compensate California Injury at an attorney's billing rate for tasks like "Sent Interpleader Letters via US Mail" or other tasks that do not require an attorney's skill to perform (including researching addresses for service, though the Court did not deduct even all that time).

So the Court GRANTS California

Injury's motion. California Injury will be discharged from liability effective upon its compliance with this order as follows:

California Injury is ordered to deposit \$1,224.00 with the Court within 30 days. That reflects the \$4,838.00 sum, less \$1,518.60 in attorney fees and \$2,095.40 in costs.

California Injury is to give notice.